

PRIVATE OCCUPANCY LICENCE & HOUSE RULES

(Queensland)

This document governs all occupancy at the premises and applies to all occupants.

Occupancy of any room at the premises constitutes acceptance of the terms below.

Hierarchy of Documents

In the event of any inconsistency between documents:

1. This Private Occupancy Licence prevails.
2. The House Rules apply subject to this Licence.
3. Any verbal guidance or written messages are subordinate to this Licence.

1. Nature of Occupancy

Occupancy is granted under a Licence to Occupy and is not a residential tenancy or rooming accommodation agreement.

The occupancy fee includes a **Service & Occupancy Component**, which covers the right to occupy a designated sleeping space **together with the provision of ongoing managed living services**, including but not limited to:

- (a) active household management and supervision,
- (b) enforcement of house standards and dispute control,
- (c) coordination of shared-area cleanliness and hygiene,
- (d) management oversight of shared facilities and common areas.

These services are integral to the arrangement and materially distinguish it from a passive room rental or tenancy.

1.1 Service & Occupancy Fee

All payments made under this Licence are **Service & Occupancy Fees**, charged for the permission to occupy, access shared facilities, and the provision of ongoing management, operational oversight, utilities coordination, and household services.

The Service & Occupancy Fee is **not rent**, is not calculated by reference to market rental value, and does not confer tenancy or rooming rights.

1.2 The owner or manager retains full control of the premises at all times.

1.3 **This arrangement is not governed by the Residential Tenancies and Rooming Accommodation Act 2008 (QLD).**

2. Licence Fee

2.1 A weekly licence fee is payable in advance. This will be specified in the extra financial considerations message.

2.2 Payment of the licence fee constitutes acceptance of this document.

2.3 Failure to pay on time is a breach of this Licence.

3. Fixed-Term Occupancy and Automatic Expiry

3.1 All occupancies operate under a fixed-term licence. The initial fixed term is a minimum of four (4) months commencing on the licence start date.

This minimum term is a core condition of the Licence. House Rules may provide operational detail regarding early departure, cost allocation, or replacement arrangements but do not vary the minimum term unless expressly stated in this Licence or in a written variation agreed by management.

3.2 Each fixed term has a clearly defined expiry date and time.

3.3 Occupancy automatically expires at the stated expiry time, without further notice.

3.4 Occupants must vacate by 12:00pm on the expiry date, unless a renewal is granted.

3.5 Extra time to vacate may result in penalty for late leaving.

4. Renewal After Fixed Term

4.1 After the initial fixed term, occupancy may continue only under a rolling 7-day licence. Each 7-day period constitutes a separate and independent licence that must be affirmatively granted by management. There is no automatic renewal, no expectation of continuation, and no creation of periodic tenancy or ongoing occupancy rights by acceptance of fees or continued presence.

4.2 Weekly renewal is at the sole discretion of management.

4.3 Renewal is not automatic.

4.4 Continuation of occupancy is assessed weekly. Any tacit or implied approval applies only to the relevant weekly period and does not constitute an ongoing or future commitment.

4.5 If a weekly renewal is not granted, the licence expires at the end of the current 7-day period.

4.6 No Holding Over

No holding over is permitted under this Licence. Continued presence at the premises after expiry or termination of the Licence does not create a renewal, extension, or periodic arrangement, whether by conduct, payment, or otherwise.

Any continued presence after expiry is unauthorised. Any funds received after expiry are accepted **as compensation for unauthorised occupation (mesne profits)** and do not constitute rent, licence fees, or acceptance of continued occupancy.

5. Standard Termination (No Breach)

5.1 Occupancy may be ended without breach **after completion of the initial fixed licence term** by providing fourteen (14) days' written notice calculated from the next scheduled payment date.

5.1A Breach and Immediate Termination

This notice period applies only to standard termination without breach.

Where termination occurs due to a breach of the Private Occupancy Licence or the House Rules, the termination provisions, notice periods, or immediate termination rights applicable to breaches apply, including expedited timeframes, and the standard notice period in Clause 5.1 does not apply. This standard notice period does not apply where termination arises from a breach, serious breach,

or immediate termination event as defined in this Licence or the House Rules, in which case termination may take effect immediately or within a shorter period as specified.

5.2 Where management elects not to renew a weekly licence **before completion of the initial fixed licence term**, such non-renewal:

- ends the permission to occupy only, and
- **does not waive, cancel, or reduce the occupant's minimum occupancy obligations, security contribution, or liability for occupancy fees**, unless expressly agreed in writing by management.

5.2.1 Security Contribution

The Security Contribution is a one-off security amount payable upon commencement of the licence to cover administrative onboarding, compliance management, risk exposure, and operational overheads associated with granting access to a managed household environment.

The Security Contribution is **not rent** and is **not held under the Residential Tenancies and Rooming Accommodation Act 2008 (QLD)**. It does not, by itself, create any tenancy, rooming accommodation, or exclusive possession rights.

The Security Contribution is **refundable upon vacating**, provided that all of the following conditions are satisfied:

- a) the mandatory bond cleaning fee has been paid in full,
- b) the designated sleeping space is returned clean and free of damage beyond fair wear and tear,
- c) the occupant's **used refrigerator space** has been emptied and cleaned, with no food residue, spills, stains, or odours,
- d) all **kitchen areas and surfaces used by the occupant**, including benches, cupboards, shelves, appliances, and storage spaces, have been cleaned and left in a hygienic and immediately usable condition,
- e) any **bathroom or ensuite used by the occupant**, including shower, toilet, basin, mirrors, tiles, and drains, has been cleaned and left hygienic and free of residue, hair, mould, or build-up,
- f) all personal belongings have been removed from the room and all shared areas,
- g) all keys, fobs, and access devices have been returned, and
- h) there are no outstanding fees, charges, or amounts payable under this Licence or the House Rules.

Where cleaning beyond the standard bond clean, damage, missing items, unpaid charges, or breaches exist, management may deduct the reasonable cost of rectification, replacement, or recovery from the Security Contribution prior to refund.

Any balance remaining after applicable deductions will be refunded within a reasonable period following vacating.

5.3 An occupant may not rely on management non-renewal, whether requested, induced, or arising from the occupant's conduct, to avoid the minimum occupancy period or associated financial obligations.

5.4 All notices must be in writing and must state a specific date and time.

6. Immediate Termination for Serious Breach

6.1 Occupancy may be terminated immediately, without prior notice, where a serious breach of this Licence or the House Rules occurs.

6.2 Upon termination, the occupant's permission to occupy the premises ends immediately.

6.3 The occupant must vacate the premises within twenty-four (24) hours of receiving the termination notice, unless a shorter period is specified due to safety or legal concerns.

6.4 **Where termination occurs due to a serious breach, management may retain all or part of the security contribution** to cover, without limitation:

- unpaid occupancy fees,
- costs of cleaning, repairs, or remediation,
- administrative, security, or enforcement costs, and
- losses arising from breach or disruption to the household.

6.5 Retention of the security contribution under this clause does not limit management's right to recover additional amounts where losses exceed the security contribution.

6.6 Serious breach termination does **not** waive the occupant's minimum occupancy obligations unless expressly stated in writing by management.

6.7 Breach-Induced Termination Costs

Where termination results from intentional or repeated non-compliance designed to provoke removal or non-renewal, management may retain part or all of the security contribution to cover administrative disruption, vacancy losses, and enforcement costs.

7. Serious Breaches Include (Non-Exhaustive)

For the purposes of this Licence, a 'serious breach' means conduct that, based on documented and verifiable facts, materially impacts safety, lawful operation, property integrity, or the orderly management of the household. A serious breach does not depend on personal opinion or preference and may arise from a single incident or repeated conduct. Serious breaches include, but are not limited to, the following non-exhaustive examples:

- Interfering with routine inspections, inspections or prospective occupants
- Contradicting, misrepresenting, or questioning house arrangements to third parties
- Causing financial loss or business disruption
- Harassment, intimidation, coercive conduct, persistent disputation of management authority, or behaviour intended to undermine, destabilise, or disrupt the household or management operations
- Creating distress or conflict within the household
- Hosting another person as an occupant without communicating the house manager
- Drug use, illegal activity, or safety breaches
- Repeated arguments with management
- Any refusal to comply with management direction
- Hosting, organising, or allowing gatherings, events, or parties **without prior written consent and approval from management**, including but not limited to:
 - loud social gatherings,

- events involving alcohol, music, games, karaoke or multiple guests,
 - gatherings that exceed guest limits, quiet hours, or disrupt the household.
 - For the avoidance of doubt, a “party” includes any gathering that, by its size, duration, noise, behaviour, or impact, disrupts the household or exceeds normal residential use, regardless of how it is described by occupants or guests.
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8. House Authority

8.1 Only management has authority to:

- explain legal or operational arrangements
- communicate with prospective occupants
- represent the household externally

8.2 Interference with management authority is a serious breach.

9. Behavioural Compliance Standard

Occupants must comply with all lawful and reasonable directions issued by management.

For the purposes of this Licence, **respectful and reasonable behaviour is defined as timely compliance with management directions**, whether issued verbally or in writing.

Any failure or refusal to follow a management direction constitutes an objective breach, regardless of the occupant’s personal view of tone, fairness, or reasonableness.

Written directions (including messages sent via WhatsApp, SMS, or email) constitute conclusive evidence of a management instruction.

Occupants must comply with all written management instructions immediately; failure to do so is an objective breach of conduct regardless of the occupant's perceived reasonableness.

9.1 Occupants must not create legal, financial, or reputational risk to the household.

10. Notice Rules (Anti-Ambiguity Clause)

10.1 All notices must be in writing.

10.2 All notices must specify a clear date and time.

10.3 Vague terms such as “next Sunday”, “this weekend”, or “soon” are invalid.

11. Vacating Requirements

11.1 Upon expiry or termination, occupants must:

vacate by the stated date and time

remove all belongings (room, kitchen, bathroom, any other areas not described in here)

return keys immediately
leave the room clean

12. Governing Law

12.1 This document is governed by the laws of Queensland, Australia.

13. Acceptance by Occupancy

13.1 Acceptance

Making payment and providing the required check-in confirmation constitute acceptance of this Licence and the House Rules & Operational Guidelines. No physical signature is required for enforceability. Acceptance occurs regardless of whether physical access has commenced.

13.2 No signature is required for enforceability.

13.3 Check-In Confirmation Requirement

Prior to key, fob, or access handover, the occupant must provide a written or digital confirmation acknowledging that they have received, read, and accepted the Private Occupancy Licence and the House Rules & Operational Guidelines in full.

Access to the premises will not be granted unless and until this confirmation is provided.

13.4 Example of Check-in Declaration:

"Check-In Declaration

I confirm that I have received, read, and understood the **Private Occupancy Licence** and the **House Rules & Operational Guidelines** in full, and I agree to be bound by them.

Full name:

Date:

Room / Property:"

Which can also be understood as:

"I confirm I have read and accept the Private Occupancy Licence and House Rules in full."